

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUPP014867: JOHN BA DOE, et al. vs SIMI VALLEY UNIFIED SCHOOL
DISTRICT, et al.**

**08/17/2026 in Department 43
Motion to Tax Costs**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Tax Costs

Tentative Ruling: Plaintiffs' Motion to Tax Costs is GRANTED as to the deposition of John Doe on the basis that Plaintiffs challenged its relevance to this particular case, and Defendant Simi Valley Unified School District ("District") did not offer opposition. The \$1,282.25 is taxed.

In all other respects Plaintiffs' Motion to Tax Costs is GRANTED in part and DENIED in part. *Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 896:

"If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. [Citations.] The burden then shifts to the objecting party to show them to be unnecessary or unreasonable." (*Doe v. Los Angeles County Dept. of Children & Family Servs.* (2019) 37 Cal.App.5th 675, 693, 250 Cal.Rptr.3d 62.) "[M]ere statements" in a motion to strike and attorney declaration "are insufficient to

2023CUPP014867: JOHN BA DOE, et al. vs SIMI VALLEY UNIFIED SCHOOL DISTRICT, et al.

rebut the prima facie showing.” (*Rappenecker v. Sea-Land Service, Inc.* (1979) 93 Cal.App.3d 256, 266, 155 Cal.Rptr. 516.)

Plaintiffs’ Motion and the attached Exhibit 1 do not sufficiently challenge the prima facie costs reflected on the cost memorandum as being relevant to only one or both of the other coordinated cases (2023CUPP007742 and 2023CUPP015288) and not this case. (*Rojas* at 896.) Plaintiffs did not explain how any of the testimony was limited to the other cases. Notwithstanding that the burden did not shift, District’s counsel (Clark Dec. at ¶8) states that the other deponents “possessed or were reasonably believed to possess, information relevant to Plaintiffs’ liability allegations, lack of notice to SVUSD, as well as SVUSD policies and practices, causation, and/or Plaintiffs’ claimed damages in this action.” Similarly, Plaintiffs did not shift the burden on the ordinary witness fees set forth at Attachment 8(a)(6) to the memorandum of costs.

The court finds reasonable the District’s desire to depose Krystie Acevado in person and the need for the reasonable costs associated therewith (Clark Dec. at ¶10 & 11); the various costs associated with taking the depositions (Code Civ. Proc., §1033.5(a)(3)(A) “taking, video recording, and transcribing”) (Clark Dec. at ¶¶7, 8, 12).

Certainly, if Defendant was the prevailing party, it would be entitled to recover costs for common deposition in the other two cases. To avoid overlapping recovery, equity dictates that a pro-rata share of the multi-case depositions is recoverable. As Defendant concedes, apportionment is discretionary. The Court chooses to allocate 1/3 of the total deposition costs (\$19,069.45 after subtracting the above \$1,282.25) to each case, leaving \$6,356.48 allowable for this case.

The expert witness fees of \$14,977.20 (incurred after the statutory offers to compromise were made) are supported (Clark Dec. at ¶16-20) and recoverable.

The court notes that District withdrew its request for \$851.15 associated with court-reporter, CourtCall, and electronic-transmission charges.

The total allowable costs are \$21,333.68.

Moving party is ordered to serve notice of the Court’s ruling.